

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3132 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Kevin West

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE

FOR

HOUSE BILL 3132

By: West (Kevin) of the House

and

Grellner of the Senate

FLOOR SUBSTITUTE

An Act relating to higher education; creating the Selecting Neutral Accreditors Act; defining terms; directing the board of regents of each institution of higher education to review accrediting agencies to determine if such agencies have adopted or used certain diversity, equity, and inclusion practices or procedures in connection with accreditation within the past five years; requiring the board of regents to begin the process to change accrediting agency if practice or procedure is found; permitting board of regents to select an accrediting agency who had diversity, equity, and inclusion practices or procedures within the past five years if the agency formally repeals practice or procedure and certifies the agency will not use practice or procedure in the future; requiring the board of regents to report if no qualifying accrediting agency is found; requiring the board of regents to review applicable accreditors for compliance prior to beginning any new accreditation or pre-accreditation process or renewal; authorizing Attorney General to request information; finding presumption of diversity, equity, and inclusion practices or procedures if failure to respond by accrediting agency; authorizing Attorney General to provide notice of presumption; voiding certain agreements between institutions and accrediting agencies; providing for investigation and

1 enforcement by Attorney General; providing for
2 noncodification; providing for codification; and
3 providing an effective date.

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6 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

7 SECTION 1. NEW LAW A new section of law not to be
8 codified in the Oklahoma Statutes reads as follows:

9 This act shall be known and may be cited as the "Selecting
10 Neutral Accreditors Act".

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 3252 of Title 70, unless there
13 is created a duplication in numbering, reads as follows:

14 A. As used in this act:

15 1. "Accreditation" means the status of public recognition that
16 an accrediting agency grants to an educational institution, program,
17 or both that meets the agency's standards and requirements;

18 2. "Accrediting agency" means a person or governmental entity
19 that conducts accrediting activities and makes decisions concerning
20 the accreditation or pre-accreditation status of institutions,
21 programs, or both. Accrediting agency includes, but is not limited
22 to, any national, regional, or programmatic accrediting agency;

23 3. "Diversity, equity, and inclusion" means any differential
24 treatment of, or assignment of any fault or blame to, an individual

1 or group at an institution of higher education based on race, color,
2 ethnicity, national origin except as it relates to immigration
3 status under United States law, sex except as related to sex-
4 segregated facilities such as dormitories and bathrooms, or athletic
5 programs, sexual orientation, or gender identity;

6 4. "Diversity, equity, and inclusion practice or procedure"
7 means any initiative, policy, program, mandate, requirement,
8 standard, metric, statistic, or other practice or procedure related
9 to diversity, equity, and inclusion; and

10 5. "Institution of higher education" means a state educational
11 institution within The Oklahoma State System of Higher Education
12 including all of the state educational institution's programs,
13 departments, divisions, offices, centers, colleges, and schools and
14 any person acting on behalf of any of the state educational
15 institution's programs, departments, divisions, offices, centers,
16 colleges, and schools.

17 B. On or before July 1, 2027, the board of regents of each
18 institution of higher education shall review each of its accrediting
19 agencies to determine if any such agencies have adopted or used in
20 the past five (5) years any diversity, equity, and inclusion
21 practice or procedure in connection with accreditation. If so, the
22 board of regents shall promptly:

1 1. Begin the process to change to an accrediting agency that
2 has not adopted or used any diversity, equity, and inclusion
3 practice or procedure in the past five (5) years;

4 2. If there is no accrediting agency that meets the requirement
5 of paragraph 1 of this subsection for an institution or program, the
6 board of regents may select an accrediting agency that has adopted
7 or used diversity, equity, and inclusion practices or procedures in
8 the past five (5) years if the accrediting agency:

- 9 a. formally repeals such practices or procedures, and
10 b. certifies to the board of regents and the Attorney
11 General in writing that such practices or procedures
12 will not be used in future accreditation standards,
13 reviews, or decisions; or

14 3. If there is no accrediting agency that meets the
15 requirements of paragraph 1 or 2 of this subsection for an
16 institution or program, the board of regents shall promptly:

- 17 a. report the findings to the Speaker of the Oklahoma
18 House of Representatives and the President Pro Tempore
19 of the Oklahoma State Senate,
20 b. review at least annually whether a qualifying
21 accreditor exists, and
22 c. if such an accreditor exists, promptly begin the
23 process to change to such accreditor.

1 C. Prior to beginning any new accreditation or pre-
2 accreditation process or renewal, the board of regents of each
3 institution of higher education shall review applicable accreditors
4 that could be selected and select an accrediting agency that has not
5 adopted or used any diversity, equity, and inclusion practice or
6 procedure in the preceding five (5) years from the date the
7 accreditation or pre-accreditation process or renewal commences. If
8 there is no accrediting agency that meets this requirement, the
9 board of regents shall proceed with the requirements in paragraphs 2
10 or 3 of subsection B of this section as applicable.

11 D. If an accrediting agency fails to fully respond to a request
12 by the board of regents or the Attorney General under this act,
13 including a voluntary request for information, there shall be a
14 presumption that the accrediting agency adopted or used a diversity,
15 equity, and inclusion practice or procedure within the preceding
16 five (5) years for purposes of this section. The Attorney General
17 shall provide notice to the board of regents and accrediting agency
18 of the Attorney General's determination of such failure to respond
19 and a ten-day opportunity to cure such failure.

20 E. Any agreement or understanding between an institution of
21 higher education or the board of regents and an accrediting agency
22 to circumvent or otherwise violate this act shall be void. The
23 Attorney General shall have the same investigative and enforcement
24 powers as are provided in the Oklahoma Deceptive Trade Practices Act

1 related to any institution of higher education, accrediting agency,
2 or person for which there is reason to believe the institution,
3 accrediting agency, or person violated or participated in the
4 violation of this act.

5 SECTION 3. This act shall become effective November 1, 2026.

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